

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

State of Ohio <i>ex rel.</i> , Dave Yost, Ohio	:	
Attorney General,	:	
	:	
Plaintiff,	:	Case No. 20IN006-149
	:	
vs.	:	Judge James Kimbler
	:	
The Landings Property Owners Association,	:	
Inc., <i>et al.</i> ,	:	
	:	
Defendants.	:	

JOINT MOTION FOR EXTENSION OF DISPOSITIVE MOTION DEADLINE

Now come the Long Defendants, Mullins Bros. Ltd., (“Mullins Bros.”), and the State of Ohio *ex rel.*, Dave Yost, Ohio Attorney General (“the State”) (collectively, the “Signing Parties”) and respectfully move this Court for an Order granting additional time to file dispositive motions in this matter. The Signing Parties request additional time through December 1, 2023 to file such motions.

The facts and law in support of this Joint Motion are set forth in the following Memorandum in Support. Moreover, a Proposed Order executed by the Signing Parties is submitted contemporaneously with this Joint Motion.

MEMORANDUM IN SUPPORT

On April 3, 2023, the State filed its Third Amended Complaint. On May 1, 2023, Mullins Bros. answered the Third Amended Complaint, and re-asserted cross-claims and third party claims against the Contiguous Property Owners and the Long Defendants. On June 9, 2023, the Long Defendants filed their Amended Answer and asserted counterclaims against the State, and a cross claim against Mullins Bros. Mullins Bros., with leave of Court, timely answered on July 27, 2023. At the July 31, 2023 status conference, the Court set October 15, 2023 as the deadline for dispositive motions.

The Signing Parties have been diligently obtaining the evidence for their respective dispositive motions. On September 7, 2023, Mullins Bros. noticed and held the deposition of Attorney Robert Rauzi, of which the transcript has been obtained. On October 9, 2023, the Parties had planned to take the deposition of resident and Long Party Defendant, Cloyd Yough. However, the deposition was cancelled the morning it was scheduled, as Mr. Yough was in the hospital for serious health issues. Additionally, on October 10, 2023, the Parties held the deposition of Steve Mullins in his capacity as a representative for Mullins Bros. under Civil Rule 30(b)(5), and as a fact witness. However, the Signing Parties need additional time to continue Mr. Mullins' deposition after encountering an unexpected time limit for the Court Reporter. Mr. Mullins is out of town for the next two weeks, but the Parties have agreed to reschedule the remaining time of his deposition for a later date.

The Signing Parties request this extension for no improper purpose, but to prevent the presentation of piecemeal evidence to the Court in the form of their respective motions. They anticipate holding depositions of Steve Mullins and Mr. Yough (or another similar fact witness should his health prevent his appearance) as soon as scheduling permits.

The Signing Parties therefore respectfully request that the dispositive motion deadline in this Court's July 31, 2023 Order be extended to December 1, 2023.

Respectfully Submitted:

/s/ Stephen E. Chappellear (via email auth.
10/12/23)

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/s/ Brett Kravitz (via email auth. y 10/12/23)

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CERTIFICATE OF SERVICE

I hereby certify that a true and accurate copy of the foregoing was served upon the following via email or regular mail this 12th day of October, 2023

<i>Via Email</i> Brett A. Kravitz, Esq. Matthew E. Meyer, Esq. Assistant Attorneys General Environmental Enforcement Section 2045 Morse Road, Building A-3 Columbus, Ohio 43229 brett.kravitz@OhioAGO.gov matthew.meyer@OhioAGO.gov <i>Attorneys for Plaintiff State of Ohio</i>	<i>Via Email</i> Cari Fusco Evans, Esq. Mark F. Fischer, Esq. Fischer, Evans & Robbins, Ltd. 3521 Whipple Avenue NW Canton, Ohio 44718 cfevans@fer-law.net mff@fer-law.net <i>Attorneys for Defendant Waters Edge Homeowners' Association</i>
<i>Via Email</i> City of Mount Vernon c/o P. Robert Broeren, Jr., Esq. City Law Director 5 North Gay Street, Suite 222 Mount Vernon, Ohio 43050 probertbroeren@mountvernonohio.org <i>Attorney for Defendant City of Mount Vernon</i>	<i>Via Email</i> Stephen P. Samuels, Esq. Christina Wieg, Esq. Frost Brown Todd 10 W. Broad Street, Suite 2300 Columbus, Ohio 43215 ssamuels@fbtlaw.com cwieg@fbtlaw.com <i>Attorneys for Defendant City of Mount Vernon</i>
<i>Via Email</i> Adam B. Landon, Esq. Eric T. Michener, Esq. Critchfield, Critchfield & Johnson Ltd. 10 S. Gay Street, P.O. Box 469 Mount Vernon, Ohio 432050 landon@ccj.com michener@ccj.com <i>Attorneys for "Quitclaim Defendants"</i>	<i>Via Email</i> Noel B. Alden, Esq. Zelkowitz, Barry & Cullers, Ltd. 103 South Main Street Mount Vernon, Ohio 43050 nalden@zbclaw.com <i>Attorney for Amy E. Badertscher and Michael C. Reilly</i>

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<i>Via Email</i> Stephen E. Chappelle, Esq. Kyle D. Tucker, Esq. Eastman & Smith Ltd. 100 E. Broad Street, Suite 2100 Columbus, Ohio 43215 sechappelle@eastmansmith.com kdtucker@eastmansmith.com Attorneys for Long Third-Party Defendants	<i>Via Email</i> Cynthia A. Cunningham, Esq. Kidwell & Cunningham, Ltd. 112 North Main Street Mount Vernon, Ohio 43050 ccunningham@kclawohio.com Pro Se Defendant
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<i>Via Regular Mail</i> Jerry and Diane Harper 53 Mallard Pointe Mount Vernon, Ohio 43050 Defendants	<i>Via Regular Mail</i> Nuh and Asiye Aydin 5 Longvue Court Mount Vernon, Ohio 43050 Defendant
<i>Via Regular Mail</i> Loretta V. Godfrey 43 Mallard Pointe Mount Vernon, Ohio 43050 Defendant	<i>Via Regular Mail</i> Phillip and Helena Curry 63 Woodlake Trail Mount Vernon, Ohio 43050 Defendant
<i>Via Regular Mail</i> Janet L. Schisler 51 Mallard Pointe Mount Vernon, Ohio 43050 Defendant	<i>Via Regular Mail</i> Peggy A. Farmer 45 Mallard Pointe Mount Vernon, Ohio 43050 Defendant

<i>Via Regular Mail</i> Crown Hill Condominiums at Mount Vernon Unit-Owners Association c/o Wilging, Roush & Parsons, CPAs Registered Agent 1684 Venture Drive, Suite B Mount Vernon, Ohio 43050 <i>Defendant</i>	<i>Via Regular Mail</i> The Landings Property Owners Association, Inc. c/o George Bertko, Registered Agent P.O. Box 336 Mount Vernon, Ohio 43050 <i>Defendant</i>
<i>Via Regular Mail</i> Daniel B. and Cara D. Salmon Risser 43 Wildwood Lane West Mount Vernon, Ohio 43050 <i>Defendants</i>	<i>Via Regular Mail</i> Michele D. Lane 46 Wildwood Lane West Mount Vernon, Ohio 43050 <i>Defendant</i>
<i>Via Regular Mail</i> Philip B. and Priscilla J. Petric 54 Wildwood Lane West Mount Vernon, Ohio 43050 <i>Defendants</i>	<i>Via Regular Mail</i> Amy E. Badertscher Michael C. Reilly 9 Wildwood Lane East Mount Vernon, Ohio 43050 <i>Defendants</i>
<i>Via Regular Mail</i> Julie A. Didinger Trustee, Stull Preservation Trust 9 Longvue Court Mount Vernon, Ohio 43050 <i>Defendant</i>	<i>Via Regular Mail</i> Phillip W. and Helena J. Curry 63 Woodlake Trail Mount Vernon, Ohio 43050 <i>Defendants</i>
<i>Via Regular Mail</i> Cynthia A. Cunningham Trustee, Cynthia A. Cunningham Trust 71 Woodlake Trail Mount Vernon, Ohio 43050 <i>Defendant</i>	<i>Via Regular Mail</i> Jon W. and Kristen N. Witham, Trustees Witham Family Revocable Trust 70 Woodlake Trail Mount Vernon, Ohio 43050 <i>Defendants</i>

/s/ Kelli J. Amador

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